

AUGUST 16, 2023

1:30 P.M.

22CF13738	BROWN v OLAN	Plaintiff was to prepare a Dismissal as matter appears to have settled pursuant to Stipulation and Order filed May 31, 2023. On now for OSC re Status of Dismissal and to determine if Defendant has relocated fence. The next CMC and OSC re Status of Dismissal is set for October 25, 2023 at 1:30 pm in Dept. 4.
22CF13893	CAPITAL ONE BANK v APEDAILE	Matter is on for an ORDER TO SHOW CAUSE RE: PLAINTIFF'S FAILURE TO OBTAIN DEFAULT JUDGMENT WITHIN 360 DAYS. No default judgment obtained. Further, California Rules of Court, Rule 3.740(d) requires that the Complaint must be served on all named defendants within 180 days after filing the Complaint. Proof of service must be filed with the court. No Proof of Service on file. Absent satisfaction of Rule 3.740(d) requirement, and explanation of failures to comply with other mandatory timelines in Rule 3.740, the matter is DISMISSED without prejudice.
22CF13882	DISCOVER BANK v TAYLOR BURGDORF	Matter is on for an ORDER TO SHOW CAUSE RE: PLAINTIFF'S FAILURE TO OBTAIN DEFAULT JUDGMENT WITHIN 360 DAYS. No default judgment obtained. Further, California Rules of Court, Rule 3.740(d) requires that the Complaint must be served on all named defendants within 180 days after filing the Complaint. Proof of service must be filed with the court. No Proof of Service on file. Absent satisfaction of Rule 3.740(d) requirement, and explanation of failures to comply with other mandatory timelines in Rule 3.740, the matter is DISMISSED without prejudice.
22CV46348	LAGUNA v CLOUGH	Upon a review of the file, pursuant to the Court's ruling on Demurrer, plaintiff was granted 30 days' leave to file a second amended complaint. To date, plaintiff has not filed and served his second amended complaint. The next Case Management Conference is scheduled for October 4, 2023 at 1:30 pm in Dept. 4.
23CV46693	LEATHERMAN v BOLIN	Upon a review of the file, this matter is at an early stage with discovery planned, but not yet appearing to have been initiated. The next Case Management Conference is scheduled for December 20, 2023 at 1:30 pm in Dept. 4.
22CV46446	McKEON v K.W. EMERSON, INC.	Upon a review of the file, this matter is at an early stage with discovery planned, but not yet appearing to have been initiated. The next Case Management Conference